

AUG 8 Session - K-12 Education Panel Transcript - Special Education

****As this transcription was done by WhisperAI, there may be inaccuracies in spelling, transcription, and speaker identification.****

[SPEAKER_02]: Okay, greetings everyone.

[SPEAKER_02]: I get to be with all of you here today.

[SPEAKER_02]: We'll go ahead and wait just a couple of minutes.

[SPEAKER_02]: Be sure everyone is able to make it into our space here today.

[SPEAKER_02]: Do I have all of my, do I have Amy, Maureen, and Andy?

[SPEAKER_02]: Are you with us here?

[SPEAKER_02]: Yes.

[SPEAKER_00]: Yes.

[SPEAKER_02]: Awesome.

[SPEAKER_02]: Great.

[SPEAKER_02]: Okay, let's go ahead and dive in so we can really use the majority of our time here.

[SPEAKER_02]: So we have some time here with three really great experts on a very important topic of special education.

[SPEAKER_02]: I'll just do a quick introduction and then turn the floor over to our moderator.

[SPEAKER_02]: So moderating our panel today is Dr. Maureen Brummett.

[SPEAKER_02]: Dr. Brummett currently serves as a superintendent of schools in Newington, Connecticut.

[SPEAKER_02]: And prior to that, she served for 19 years in Plainville Community Schools, where she held a variety of roles, including the director of special education.

[SPEAKER_02]: Dr. Brummett, thank you for being our moderator here today.

[SPEAKER_02]: With Dr. Brummett, we have two additional experts.

[SPEAKER_02]: One is Amy Turner.

[SPEAKER_02]: So Amy is the Assistant Superintendent for Special Education in Wallingford.

[SPEAKER_02]: She spent the last 29 years as a special education teacher and administrator in Connecticut.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_02]: She's also president of CONCASE, which is a Connecticut-based association for special education administrators.

[SPEAKER_03]: Finally, Andy Feinstein is here with us.

[SPEAKER_02]: He's a principal attorney at Feinstein Education Law Group.

[SPEAKER_02]: And Andy has represented children with disabilities and their families pursuing appropriate educational programs for the past 30 years.

[SPEAKER_02]: And he is also a founder, the treasurer, and the government relations committee chair of Special Education Equity for Kids in Connecticut.

[SPEAKER_02]: Maureen, Amy, Andy, thank you for being here with us.

[SPEAKER_01]: Turn the floor over to you.

[SPEAKER_01]: Well, thank you so much.

[SPEAKER_01]: And as I understand it, we're going to start with some questions and then the audience can also pose questions if they would like to.

[SPEAKER_01]: But we were advised that this is a conversation about special ed funding and kind of the challenges that a lot of systems are facing and the impact on local towns.

[SPEAKER_01]: So I was going to start with a question about

[SPEAKER_01]: What are the biggest drivers of costs for special education services in your district?

[SPEAKER_01]: And Amy, that might be well fielded by you.

[SPEAKER_03]: Thank you, Marie.

[SPEAKER_03]: So I think that is a very broad question in terms of the drivers, right?

[SPEAKER_03]: I think it's important to understand that special education is a legal mandate.

[SPEAKER_03]: So often

[SPEAKER_03]: It's just really important for individuals to understand that we are required to provide the services, that we can't pick and choose which services to provide.

[SPEAKER_03]: And that's all under the Individuals with Disability Act.

[SPEAKER_03]: I think in terms of the drivers, transportation is a very big driver in cost.

[SPEAKER_03]: So transportation rates continue to increase for school districts in general.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_03]: And in terms of special education, we are required to provide specialized vehicles for students who have ambulatory needs, smaller vehicles for students who just aren't able to manage safely the typical bus ride.

[SPEAKER_03]: So transportation is definitely a driver.

[SPEAKER_03]: the increase in identification of students.

[SPEAKER_03]: So you'll notice that even though the enrollment of school districts continues to decrease, the number of students eligible for special education services continues to increase.

[SPEAKER_03]: So that really creates a divide in the increase of cost compared to the district cost.

[SPEAKER_03]: You know, there are several reasons for the increase in eligibility.

[SPEAKER_03]: One of them is we just know more about students' needs, right?

[SPEAKER_03]: So we know more about the brain.

[SPEAKER_03]: We know more about what students require, the whole intervention process.

[SPEAKER_03]: So we're providing students with as much support as we can before they're eligible.

[SPEAKER_03]: what the new eligibility checklist and the new eligibility guidelines have really increased.

[SPEAKER_03]: Student mental health needs has increased, especially since COVID.

[SPEAKER_03]: So districts across the country really are seeing just an increase in need, especially at the younger age for behaviors, anxiety, depression, which is really driven

[SPEAKER_03]: the need for specialized program and additional staff.

[SPEAKER_03]: And just cost for everything have increased.

[SPEAKER_03]: So our supplies are more expensive.

[SPEAKER_03]: Staffing is more expensive.

[SPEAKER_03]: We're seeing a need to get staff from private agencies, which is more expensive than contracting them.

[SPEAKER_03]: So there's definitely quite a few drivers to the cost

[SPEAKER_01]: Thank you.

[SPEAKER_01]: You covered a lot of ground in that response.

[SPEAKER_01]: I appreciate that.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: For folks on our... Can I have you heard on that a little bit for you?

[SPEAKER_01]: Andy, go right ahead.

[SPEAKER_00]: In terms of, first I should point out that both Amy and I served on a task force that the legislature created on funding to special education.

[SPEAKER_00]: And we came out with a recommendation which was not nearly as bold as some people wanted us to, but that's where we ended up.

[SPEAKER_00]: And that's a document that probably could be shared with all, I mean, can be shared with all of you.

[SPEAKER_00]: I would hope it would be shared with you.

[SPEAKER_00]: On the issue of costs,

[SPEAKER_00]: About 19 to 20% of kids in districts typically are identified as eligible for special education.

[SPEAKER_00]: According to the budget stuff that comes to the state, about 27% of school budgets are spent on special education.

[SPEAKER_00]: That means that the average special ed kid costs about 50% more.

[SPEAKER_00]: And that's sort of the figure to keep in mind in Connecticut.

[SPEAKER_00]: That is highly variegated.

[SPEAKER_00]: There we have the federal policy, No Child Left Behind.

[SPEAKER_00]: Every child is entitled to a free, appropriate public education.

[SPEAKER_00]: And that includes a lot of children with some very severe disabilities.

[SPEAKER_00]: And we have about 5% of kids in Connecticut get outplaced because their needs are so great that the local district can certainly provide for them.

[SPEAKER_00]: And the cost of those placements can be

[SPEAKER_00]: and frequently is in the six figures.

[SPEAKER_00]: And we'll get to excess cost reimbursement later, which covers some of that, but not much.

[SPEAKER_00]: And so in terms of, most special ed kids are largely in the general education environment and are given some supports.

[SPEAKER_00]: And the cost of their programs, while maybe slightly higher than the cost of the program for other, for general education kids, is not large.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: there's a lot of focus on these out-place kids, which are really very, very expensive placements.

[SPEAKER_00]: And then the other thing I wanted to say is that Amy talked about the increase in eligibility.

[SPEAKER_00]: I've been doing this for 35 years.

[SPEAKER_00]: There are more kids today with serious issues than there were 30 years ago.

[SPEAKER_00]: It's not a matter of just diagnosis.

[SPEAKER_00]: It's a matter of

[SPEAKER_00]: what's going on in society.

[SPEAKER_00]: I would pin a lot of that on the biggest increase in eligibility is in learning disability category, not in emotional disabilities, sort of surprisingly.

[SPEAKER_00]: But what I'm saying is a lot of kids who just can't plan, can't focus, have total lack of attention and executive functioning.

[SPEAKER_00]: And I would put a lot of that on smart devices.

[SPEAKER_00]: which is reducing attention spans, making it very difficult for kids to focus, and making kids fundamentally disinterested in reading anything longer than a tweet.

[SPEAKER_00]: I think that's sort of a serious problem that's leading to increased eligibility.

[SPEAKER_00]: Finally, I would say that

[SPEAKER_00]: executive function is recognized as, you know, a clear category of disability, but we really don't have a very effective way of dealing with that.

[SPEAKER_00]: I mean, we have methods to teach kids how to read, and we have methods teaching kids how to do math, but in terms of teaching kids how to organize themselves, how to stay focused on something, our curriculums are really very bleak in that area.

[SPEAKER_01]: Yeah, that's certainly a growing area for special education is working on executive functioning.

[SPEAKER_01]: While we're talking about increasing eligibility rates, autism is another area that has seen, based on some data that CAPS recently looked at, about 150% increase over the last decade or so.

[SPEAKER_01]: What are our panelists' thoughts on what has contributed to that significant uptick in that particular disability area?

[SPEAKER_03]: I would say that, Andy, I went first last time.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_03]: Do you want to go first?

[SPEAKER_03]: Okay.

[SPEAKER_03]: I would say that the lack of exposure to social situations has definitely increased student need.

[SPEAKER_03]: We are seeing, yes, we're seeing increase in autism.

[SPEAKER_03]: It is, there is a hereditary component to it.

[SPEAKER_03]: So that is definitely something that we're seeing.

[SPEAKER_03]: But we also saw a lot of children diagnosed while they were isolated during COVID.

[SPEAKER_03]: And our numbers for young children has exploded significantly, whether that's lack of exposure, whether it's lack of ability to synthesize

[SPEAKER_03]: I think Andy's comment about technology is something that has impacted this population as well because that is their interaction.

[SPEAKER_03]: They don't learn how to socialize because they're in front of a tablet or a computer for a big portion of time.

[SPEAKER_03]: And there was also a change in the eligibility criteria for the DSM where they

[SPEAKER_03]: looked at not having Asperger's and everything is under general autism.

[SPEAKER_03]: So there are a couple of medical facts, I think society in general, and then genetics are definitely reasons.

[SPEAKER_03]: And we're more aware.

[SPEAKER_03]: Some children that we would have typically said were quirky are now identified as having autism.

[SPEAKER_03]: So there's a gambit of reasons.

[SPEAKER_03]: And Andy doesn't agree with the word I just said.

[SPEAKER_00]: No, I agree with you completely.

[SPEAKER_00]: I have no clue as to why there's an increase.

[SPEAKER_00]: You know, I know what Mike Palmieri at the Center for Children with Special Needs was quoted in the paper saying that a lot of it's better diagnosis.

[SPEAKER_00]: I think there's some of that.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: But just in my experience, it's just more kids with these lack of social skills, with their inability to focus, with

[SPEAKER_00]: And, you know, and, you know, so there's that, this sort of, you know, there are these really severe cases.

[SPEAKER_00]: And I'm involved with a school that provides services to some of the most impaired kids.

[SPEAKER_00]: And the demand is just enormous, as you know.

[SPEAKER_00]: I don't know whether these children existed 20, 30 years ago, but the numbers are just, you know, really, really growing.

[SPEAKER_00]: And we're obliged to provide a free, appropriate public education to each of those children.

[SPEAKER_00]: Right.

[SPEAKER_03]: And I would say to that point, Andy, some of it is children that we are now identifying as having autism in the past were intellectually disabled.

[SPEAKER_03]: Right.

[SPEAKER_03]: So there is a balance of what that diagnosis per se is.

[SPEAKER_01]: Definitely.

[SPEAKER_01]: But I'd like to get back into what was referenced earlier, which is called the excess cost component.

[SPEAKER_01]: And it's something that's not always understood.

[SPEAKER_01]: But special education costs are largely funded by the town where the child resides.

[SPEAKER_01]: But there are challenges.

[SPEAKER_01]: We have an excess cost grant that districts can access after they've spent four and a half times the per pupil cost.

[SPEAKER_01]: And most districts are spending right around 20,000 for the general ed costs.

[SPEAKER_01]: And if you multiply that times four and a half, you're looking at \$90,000.

[SPEAKER_01]: My math might be a little off.

[SPEAKER_01]: And it's at that point that excess cost is triggered.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_01]: But what are some of the challenges with excess cost for school systems with having to deal with those very challenging high cost issues?

[SPEAKER_03]: I think one of the things that I mean is really important to recognize is that a lot of districts, their per pupil expenditure because they're tiny towns.

[SPEAKER_03]: I know I'm from the Northwest corner and those regions don't have very many students.

[SPEAKER_03]: So their per pupil cost, they don't get excess costs because their per pupil is like 34, 35,000, right?

[SPEAKER_03]: So you're looking at an extremely expensive student

[SPEAKER_03]: to hit that four and a half threshold.

[SPEAKER_03]: Connecticut is only one of two states that uses excess costs as their state funding.

[SPEAKER_03]: And it definitely takes away the equity piece to funding of special education.

[SPEAKER_03]: And I know, just speaking personally, my excess cost threshold is 99,000.

[SPEAKER_03]: So if I have a student who, between tuition and transportation,

[SPEAKER_03]: cost \$97,000, I get nothing, right?

[SPEAKER_03]: So a vast majority of my students are right around that number.

[SPEAKER_03]: Granted, I have my \$400, \$500,000 students.

[SPEAKER_03]: But that's not the majority, kind of what Andy was saying earlier.

[SPEAKER_03]: That's your extreme needy kids.

[SPEAKER_03]: So districts aren't getting refunded.

[SPEAKER_03]: And when you look at that, that's really difficult.

[SPEAKER_03]: The other thing that excess cost doesn't account for are the students who move into districts mid this mid year or come from out of state or the students that you didn't.

[SPEAKER_03]: You know, you're not able to meet their needs, so you have to out place them during the middle of the year.

[SPEAKER_03]: Well, that's an unexpected expenditure and you're not going to hit the four and a half if they're placed in and out of district facility mid year because you don't have a full year cost.

[SPEAKER_03]: it doesn't touch the amount of money we need to spend.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_03]: And then on top of it, we don't get 100% of that.

[SPEAKER_03]: So you get 60% of four and a half.

[SPEAKER_03]: So for every \$10,000, you get six.

[SPEAKER_03]: Well, that's really not touching the burden on the local districts.

[SPEAKER_03]: And when you have a very large district, that's a huge number every year.

[SPEAKER_01]: Yeah, that is such an important point, Amy, that the excess cost grant has never been fully funded.

[SPEAKER_01]: So even those districts, all of us basically access it in some way, shape, or form, but we don't get the full reimbursement rate.

[SPEAKER_01]: So that is the state's contribution at this time to special education.

[SPEAKER_01]: The federal money comes in from the IDEA grant.

[SPEAKER_01]: I don't know if either Andy or Amy would like to comment on how much

[SPEAKER_01]: Does that really contribute to a district's special ed resources?

[SPEAKER_00]: Well, I want to step back and talk about funding of special education more generally.

[SPEAKER_00]: In Connecticut, we do not have well up until two years ago, we did not have a specific appropriation for special education.

[SPEAKER_00]: There's now something called the seed grant, which is \$20 million.

[SPEAKER_00]: Excess cost.

[SPEAKER_00]: Is

[SPEAKER_00]: \$212 million.

[SPEAKER_00]: ECS, which is general funding for education, which includes special education, is something like \$3.6 billion.

[SPEAKER_00]: And so that's just in sort of the proportions of all those funding streams.

[SPEAKER_00]: The federal government, when they passed the IDEA in 1975, committed themselves to paying 40 percent of the average per pupil cost

[SPEAKER_00]: nationwide.

[SPEAKER_00]: which, for special education.

[SPEAKER_00]: Currently it's at about 12 percent.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: It's never been above 14 percent.

[SPEAKER_00]: And indeed, in signing the bill, President Gerald Ford issued a statement which was originally written as a veto message saying we can't afford this.

[SPEAKER_00]: And, you know, it became the law, but he was quite right that the federal government's contribution is quite low.

[SPEAKER_00]: So the first question we really need to ask

[SPEAKER_00]: Well, as Amy quite accurately said, this is an entitlement that you're entitled to a free, proper public education.

[SPEAKER_00]: And that money is absolutely fixed.

[SPEAKER_00]: Now, they're probably wasted for cost savings around the edges, but not substantially.

[SPEAKER_00]: So we have this figure.

[SPEAKER_00]: And then the first question is, who pays for it?

[SPEAKER_00]: Right now in Connecticut, it is overwhelmingly local property taxes.

[SPEAKER_00]: That's not true in most states.

[SPEAKER_00]: The state share in Connecticut is 35%.

[SPEAKER_00]: The state share nationally on average is 45%.

[SPEAKER_00]: And but the reality is, you know, the same citizens are going to pay for it, whether it comes to local property taxes, state income and sales tax, or federal taxes.

[SPEAKER_00]: The federal share amounts to about 9%, 10% total.

[SPEAKER_00]: That varies widely by district.

[SPEAKER_00]: One of the big issues here is the inequity of the whole situation, where you have property poor towns, property poor cities, which are also overwhelmingly minority, which do not have the tax base to support their local share.

[SPEAKER_00]: And the state ECS money was created and audited

[SPEAKER_00]: equalize it some and it equalizes it a little bit.

[SPEAKER_00]: Now excess cost is something which municipalities have been very, very aggressive in fighting for.

[SPEAKER_00]: I don't love it because not one penny of it really goes to provide special ed services in district.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: 92% of excess costs for reimbursements are for added district placements.

[SPEAKER_00]: And it's those people Amy was talking about.

[SPEAKER_00]: And let me just clarify a little bit what Amy said.

[SPEAKER_00]: The district is responsible for the first four and a half times, no matter what it costs.

[SPEAKER_00]: It's the excess above that that there's a reimbursement formula, which is now districts are getting about 70 percent of that.

[SPEAKER_00]: I also want to just clarify what Maureen said.

[SPEAKER_00]: There was a time when you fully funded it back in 2012, but the number hasn't gone up, the appropriation hasn't gone up, and that means the proportion the towns get gets smaller and smaller.

[SPEAKER_00]: So right now it's at 212 million.

[SPEAKER_01]: You did reference the SEED grant, which was a nice uptick in special ed funding, and it stands for the Special Education Expansion and Development Grant.

[SPEAKER_01]: My district, which is considered the medium-sized district, got about \$170,000, which allowed us to open up a new program.

[SPEAKER_01]: So it is a promising grant as well as the high-quality special education grant that's out right now.

[SPEAKER_01]: Districts are awaiting answers around that.

[SPEAKER_01]: Do you think if these grants were to increase, that would be helpful for systems to have more, you know,

[SPEAKER_01]: access to funding for special education programs?

[SPEAKER_00]: Well, here's my view, and this is not a majority view by any means.

[SPEAKER_00]: Yes, more money, we need more money.

[SPEAKER_00]: There's a shortage of special ed teachers, there's a shortage of para-educators, there's a shortage of bus drivers, and the only way we as, you know, in a policy position can do anything, can deal with that, is to provide more money for it.

[SPEAKER_00]: My concern, now Connecticut is one of the very few states that doesn't have the direct funding for special education.

[SPEAKER_00]: My concern is that what turns out to be floors often ends up be ceilings and appropriations.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: So if we start giving X dollars to each town for special education, that's probably gonna mean just a reduction in local expenditures for special education.

[SPEAKER_00]: So I, you know,

[SPEAKER_00]: I would look for an enhancement of special ed services.

[SPEAKER_00]: But if it's new money from the state for special education, and with some protection against loss of existing funding, I'd be all for it.

[SPEAKER_00]: But I'm afraid that a state grant for special education would actually serve to just continue the current levels of underfunding.

[SPEAKER_03]: There are some really stringent

[SPEAKER_03]: guardrails on the seed grant, Andy, that are really forcing districts or I guess to respond to your concern, districts aren't able to use it for current programming, right?

[SPEAKER_03]: So and they're not able to use it for outside contracted services or so I think your concern of it not going towards

[SPEAKER_03]: It's always going to happen, right?

[SPEAKER_03]: That it'll, in some ways, supplant something.

[SPEAKER_03]: However, it really is designed, probably the best I've seen in my, I don't want to admit many, many years, of really looking at expanding programming.

[SPEAKER_03]: I think the last thing I've seen that's really done that was when we had all the money during Obama.

[SPEAKER_03]: I can't remember what that grant was called.

[SPEAKER_03]: It really did serve that purpose.

[SPEAKER_03]: And the high quality programming grant is very, very competitive.

[SPEAKER_03]: And that application was very specific about how you're expanding.

[SPEAKER_03]: What is that new program going to look like?

[SPEAKER_03]: What are the new facilities you're going to need?

[SPEAKER_03]: So I do think the state's, I don't disagree with your concern, but I do think the state has, for the first time in a long time, really been very specific about what these funds can be used for, which

[SPEAKER_03]: will kind of support your concern in a way that that doesn't happen.

[SPEAKER_01]: Certainly.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_01]: And with the concern with what restrictions were placed on it and will it take money from one pot move it to another versus actually provide new resources.

[SPEAKER_01]: But that kind of brings up a very recent initiative at the state level with the governor's blue ribbon commission on K-12 education, funding and accountability.

[SPEAKER_01]: In April, the governor signed an executive order to establish commission and tasked it with a top to bottom overhaul of how states fund public education.

[SPEAKER_01]: And the commission is required to look at the landscape of educational funding in Connecticut and look at any relevant models outside of Connecticut that may help to influence it or inform it rather about how we should fund our schools here in Connecticut.

[SPEAKER_01]: We are looking to that committee and anxiously awaiting what they are going to come up with.

[SPEAKER_01]: What are some of your hopes, one of our panelists, that something will come out of that that will support our special education challenges at the local level?

[SPEAKER_03]: So the Blue Ribbon Commission is really looking at, I know one of the questions popped up, how do other states fund, right?

[SPEAKER_03]: So Connecticut, as Andy said, is one of two states that

[SPEAKER_03]: uses local funding for special education.

[SPEAKER_03]: So the Blue Ribbon Commission is really looking at nationally, what does that look like?

[SPEAKER_03]: So there's some states that, like Massachusetts and Texas, that give a per student, special ed student amount of money, flat fund to every district.

[SPEAKER_03]: So in Newington, you have 500 identified students.

[SPEAKER_03]: They would give you \$5,000 per every single student with special needs.

[SPEAKER_03]: So that is one of the funding models, right?

[SPEAKER_03]: So taking it out of ECS and making it its own special fund.

[SPEAKER_03]: And some concerns about with over identification with that is something.

[SPEAKER_03]: So I know the Blue Ribbon Commission has really dedicated their time to just looking nationally at what are the different funding types

[SPEAKER_03]: There are so that is one way to do that.

[SPEAKER_03]: You know, I think the other thing that we haven't mentioned that does impact districts is our parent choices.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_03]: So open choice.

[SPEAKER_03]: ACES, LEARN, or SDE magnets and charters.

[SPEAKER_03]: Those are all students who don't attend district schools that actually cost the district funds.

[SPEAKER_03]: They the receiving district as well as the sending district the way that the state funds that it doesn't hit.

[SPEAKER_03]: what the needs are of those students.

[SPEAKER_03]: I think something that Connecticut needs to look at is there's no guardrails, kind of what Andy had said earlier, to what towns do with those ECS funds that come in, the excess cost funds that come in, the tuition funds.

[SPEAKER_03]: For example, the town that I work in, all of the tuition funds and ECS, they all go to the town budget, not the school budget.

[SPEAKER_03]: So those are things that would be helpful if the state could look at what are some ways that we can unify how those funds are allocated and how schools receive them.

[SPEAKER_03]: How does that offset the town budget?

[SPEAKER_03]: Yes, it all comes out of the same coffer.

[SPEAKER_03]: But when it's time to vote and it's time to balance the town's budgets, that's never put into the equation.

[SPEAKER_03]: So I think that's one thing that could definitely help.

[SPEAKER_00]: You know, I have a great deal of respect for Marie.

[SPEAKER_00]: And I think that she needs more money to run her school system.

[SPEAKER_00]: And I think I would trust her to allocate money for special ed.

[SPEAKER_00]: for general ed, for athletics, for whatever, and her school board.

[SPEAKER_00]: I'm concerned that we end up with great inefficiencies the more we silo the money, the more restrictions we put on the placement of the money.

[SPEAKER_00]: You mentioned the state grant money.

[SPEAKER_00]: Well, you know, one of the restrictions is that we can't use it for any private contractors.

[SPEAKER_00]: And so if you want to start an office program and want to hire some outside BCBAs, you can't do it with that money.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: And, you know, I'm just not sure that the wise folks in Hartford have a better idea of how to allocate that money within Newington than Maureen does.

[SPEAKER_00]: And so I think the idea is to get more money.

[SPEAKER_00]: Now let me just say that the Council of Governments, I think it's their website, has an enormous website of how each state funds education.

[SPEAKER_00]: No two states are the same.

[SPEAKER_00]: Frankly, no two states are even close to the same.

[SPEAKER_00]: And I'm asked frequently, who's got a good system?

[SPEAKER_00]: Well, the answer is

[SPEAKER_00]: You got a good system if you got more money.

[SPEAKER_00]: And if there's more money in the system, people are happier with it and it serves its purpose better.

[SPEAKER_00]: I'm not sure that structurally it makes, you know, I think there are worse systems with more restrictions on them, but I would rather have more money going to towns to use as they see fit, recognizing that the entitlement to special education is really very much a fixed cost.

[SPEAKER_01]: Thank you and I appreciate those comments about the decision-makers.

[SPEAKER_01]: It's such an important fact that most of this money goes straight to the town and in some cases they do allow the districts to have the excess cost money and other cases they do not.

[SPEAKER_01]: So that is an important distinction as we look at how funds are allocated.

[SPEAKER_01]: I wanted to mention something

[SPEAKER_01]: I'm a former president of the Connecticut Association of Public School Superintendents (CAPSS), and we're currently, several of us are on a panel with the School State Finance Project.

[SPEAKER_01]: We've been researching special ed prevalence rates and all of those things, and obviously one of the major things we're looking at is, you know, what

[SPEAKER_01]: can change about state funding for special education.

[SPEAKER_01]: We might, we're still working on our recommendations, but a potential outcome is that we want obviously excess cost to be fully funded.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_01]: We want the seed grant to be expanded into Andy and Amy's points having less restrictions on it because we can't always hire from within.

[SPEAKER_01]: And someone asked, is it a union issue?

[SPEAKER_01]: We don't really know if it's a union issue as to why they're

[SPEAKER_01]: not allowing contractors, it's just something that's been put as a rule set, and it's a two-year grant, so we're going to get seed money for this upcoming school year, and it's still going to have that restriction in it.

[SPEAKER_01]: And another thing that might come out of that committee is recommending more funding to support multi-tiered systems of support, which may provide services for students

[SPEAKER_01]: prior to meeting special education.

[SPEAKER_01]: And districts have a wide range of abilities to provide that.

[SPEAKER_01]: I'll just throw it back to our panelists as to what are their thoughts on those recommendations or others that they might think would be helpful.

[SPEAKER_03]: I think having the ability, I think those are great recommendations.

[SPEAKER_03]: You know, I think the inability to

[SPEAKER_03]: use the funds for contractors does put a lot of limits on districts because we, as Andy said earlier, there's a shortage in staff, right?

[SPEAKER_03]: So one of the things that my district wanted to do was hire a bilingual speech and language pathologist.

[SPEAKER_03]: Well, I have to contract out for that, but that was going to be what we were using our seed money for, which is an expansion of our programming for something that's very much needed.

[SPEAKER_03]: But now we can't do that because we can't use

[SPEAKER_03]: contractor, right?

[SPEAKER_03]: So I think the state needs to realize that we don't reach out to contracted services for things that we could hire somebody internally because the cost is exorbitant.

[SPEAKER_03]: We don't want to do that.

[SPEAKER_03]: So there needs to be a balance there.

[SPEAKER_03]: And I do feel that

[SPEAKER_03]: You know, we can use the seed money for MTSS.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_03]: So that is to step in the right direction in terms of supporting students before they become a special ed.

[SPEAKER_03]: It's just expanding our knowledge and expertise district wide to do that.

[SPEAKER_00]: Well, I'm not a big fan of the excess cost spring.

[SPEAKER_00]: Now it's an insurance policy.

[SPEAKER_00]: Let's recognize it for what it is.

[SPEAKER_00]: It's really not funding special education or districts.

[SPEAKER_00]: It's a insurance policy for the catastrophic cases with a lot of problems with it, as Amy mentioned before, with kids moving into district and the like.

[SPEAKER_00]: But it is here to stay, and I'd rather it be funded than not funded, in terms of MTSS.

[SPEAKER_00]: But we have this very strange binary model, either you're special ed or you're not special ed.

[SPEAKER_00]: And if you're special ed, you're entitled to a free or proper public education.

[SPEAKER_00]: If you're not special ed, you don't have that entitlement.

[SPEAKER_00]: But it's a continuum of kids.

[SPEAKER_00]: And the services ought to be focused in that way so that we provide the services that every child needs, whether they're designated for special education or not.

[SPEAKER_00]: And if we provide ample services in the general education environment, particularly early on, we're going to have fewer kids designated for special education.

[SPEAKER_00]: and so that really is the way to go.

[SPEAKER_00]: And perhaps the greatest in my view, the single best thing we could do to reduce the special ed caseload would be to have mandatory pre-K. To have three to five year olds all in school.

[SPEAKER_01]: I would agree with that very much.

[SPEAKER_01]: The great equalized getting the kids in early on.

[SPEAKER_02]: Team, I just wanted to let you know we have five minutes remaining in our conversation.

[SPEAKER_01]: Thank you, Heidi.

[SPEAKER_01]: I wanted to bring up one more topic, and then we can certainly open it up.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_01]: But I did see it appear in the chat feature that there was some discourse about the burden of proof component when it comes to any type of special ed legal situation.

[SPEAKER_01]: Would one of our panelists like to comment on how burden of proof

[SPEAKER_01]: works in Connecticut and we're kind of an outlier nationally about how it works.

[SPEAKER_00]: Yeah, I've spent far too much time on this issue.

[SPEAKER_00]: There are 11 states now where the burden of proof is on the school district to show the appropriateness of its IEP.

[SPEAKER_00]: The balance of the states have the burden on the party bringing the litigation.

[SPEAKER_00]: As somebody who litigates these cases,

[SPEAKER_00]: I don't think it makes a dime or two difference.

[SPEAKER_00]: If I'm bringing a case.

[SPEAKER_00]: I have got to prove that the program offered by the district is not appropriate.

[SPEAKER_00]: This is not like civil court where if the other side doesn't make its case, you can move for a directed verdict.

[SPEAKER_00]: There is no such thing in this case.

[SPEAKER_00]: I have to prove that through experts, through expert testimony, that the program offered by the district does not offer a free, appropriate public education for the student.

[SPEAKER_00]: We don't have time today, even if we went on all day and all night to define the term appropriate.

[SPEAKER_00]: The Supreme Court said it's cryptic, and that it is.

[SPEAKER_00]: But we all have some notion of what needs to be done for a child with a disability, and either the district's doing it or not doing it.

[SPEAKER_00]: Somebody did ask about parents insisting on out of district placements.

[SPEAKER_00]: And that's often where this does come up, where somebody says, my child is not getting the services they need, and I want them placed at this private school, which will provide those services.

[SPEAKER_00]: And that's a bulk of cases.

[SPEAKER_00]: I will tell you that 98% of those cases settle through some sort of cost sharing arrangement, which in some cases actually save the district money.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_00]: It's an issue that folks do not want to go forward on.

[SPEAKER_00]: There's been a lot of energy spent on burden of proof in this state and around the country.

[SPEAKER_00]: And my view is in terms of winning or losing a hearing, you know, it doesn't make a big deal, a great deal of difference.

[SPEAKER_03]: And I think just because we only have like 90 seconds left, I would say it changes the decision process on the district of having the burden of proof.

[SPEAKER_03]: Oftentimes, where you would want to defend yourself, you end up settling because you have the burden of proving the appropriateness.

[SPEAKER_03]: And that's why a lot of those settle, which does cost the districts money for attorney fees and the outlays spent eventually.

[SPEAKER_03]: And that's why a lot of those settle, which does cost the district's money for attorney rates and the outlays spent eventually.

[SPEAKER_00]: But let me just say about that.

[SPEAKER_00]: There were 380 due process filings last year.

[SPEAKER_00]: Nine of them went to a final decision.

[SPEAKER_00]: So I mean, cases settled.

[SPEAKER_01]: So that is true.

[SPEAKER_01]: And I do see a comment in the chat feature about is the special ed industry, I'm not sure it's really an industry, incentivized to expand the pool of children.

[SPEAKER_01]: No, I don't believe so.

[SPEAKER_01]: I think we are identifying kids who need services as been said by our panelists.

[SPEAKER_01]: And we are obligated to make sure they get the appropriate program.

[SPEAKER_01]: So I know we're getting ready to close out.

[SPEAKER_01]: I just want to thank Amy and Andy for their thoughtful insights.

[SPEAKER_01]: Obviously, both of you have tremendous expertise in the field of special education.

[SPEAKER_01]: I hope we're able to share some insights to our attendees about the funding issues and the challenges.

AUG 8 Session - K-12 Education Panel Transcript - Special Education

[SPEAKER_01]: And I look forward to our upcoming outcomes of a committee that I'm working on to make some recommendations.

[SPEAKER_01]: Thank you all for attending today and for being part.